

BYLAWS OF REVIVE RECOVERY

ARTICLE I-NAME AND PURPOSE

Section 1 -Name: The name of the organization shall be **Revive Recovery**. It shall be a nonprofit corporation under the laws of Minnesota and Chapter 317A of Minnesota Statutes, as amended.

Section 2-Purpose: **Revive Recovery** is organized exclusively for charitable and educational purposes within the meaning of 501(c)(3) of the Internal Revenue Code, or the corresponding section of any future federal tax code, or such other provisions of Minnesota or federal law as may from time to time be applicable, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations under said section 501(c)(3). This corporation shall not be operated for profit, but shall be operated exclusively for charitable purposes.

The purpose of this organization is:

To serve as a nonprofit recovery community organization including without limitation, providing support to individuals in recovery from substance abuse disorders; providing education to individuals, families and communities regarding the different pathways to recovery; providing resources and meeting spaces to individual support groups; and providing peer-based recovery services to individuals in recovery.

ARTICLE II-MEMBERSHIP

Section 1-Membership & Qualifications: Membership shall consist of the board of directors. A minimum of fifty percent (50%) of the Board of Directors must self-identify as having personal experience with substance use disorder and recovery.

ARTICLE III-BOARD OF DIRECTORS

Section 1 Board role, size and compensation: The board is responsible for overall policy and direction of the association, and delegates responsibility of day-to-day operations to the staff and committees. The board shall have up to 9, but not fewer than 3 members. The board receives no compensation. No more than three offices may be held by the same person.

Section 2-Terms: All board members shall serve three-year terms, but are eligible for re-election indefinitely.

Section 3-Meetings and notice: The board shall meet at least quarterly, at an agreed upon time and place. An official board meeting requires that each board member have written notice at least two weeks in advance. Notice can and shall be sent via e-mail, unless otherwise agreed upon.

Section 4-Board elections: During the last quarter of each fiscal year of the corporation, the board of directors shall elect Directors to replace those whose terms will expire at the end of the fiscal year. This election shall take place during a regular meeting of the directors, called in accordance with the provisions of these bylaws.

Section 5-Election procedures: New directors shall be elected by a majority of directors present at such a meeting, provided there is a quorum present. Directors so elected shall serve a term beginning on the first day of the next fiscal year.

Section 6-Quorum: A quorum must be attended by at least forty percent of board members for business transactions to take place and motions to pass.

Section 7-Officers and Duties: There shall be three officers of the board, consisting of a board chair, secretary and treasurer. Their duties are as follows:

The chair shall convene regularly scheduled board meetings, shall preside or arrange for other members of the Executive Committee to preside at each meeting in the following order: vice-chair, secretary, treasurer, sign and deliver in the name of Revive Recovery bonds, contracts or other instruments pertaining to the business of Revive Recovery (unless authority to sign and deliver is required by law or expressly agreed elsewhere to be granted to another board member or agent), and see that all order and resolutions of the board are carried into effect.

The secretary shall be responsible for keeping records of board actions, including overseeing the taking of minutes at all board meetings, sending out meeting announcements, distributing copies of minutes and the agenda to each board member, and assuring that corporate records are maintained.

The treasurer shall make a report at each board meeting. The treasurer shall chair the finance committee, assist in the preparation of the budget, help develop fundraising plans, keep accurate financial records, deposit cash and checks in the bank as designated by the board, perform other duties as set forth by the board of directors, and make financial information available to board members and the public. The treasurer may delegate duties, with the approval of a majority of the board of directors, to any financial agent or institution as soon designated by the board.

Section 8-Vacancies: When a vacancy on the board exists mid-term, the secretary must receive nominations for new members from present board members two weeks in advance of a board meeting. These nominations shall be sent out to board members with the regular board meeting announcement, to be voted upon at the next board meeting. These vacancies will be filled only to the end of the particular board member's term.

Section 9-Resignation, termination and absences: Resignation from the board must be in writing and received by the secretary. A board member shall be terminated from the board due to excess absences, more than two unexcused absences from board meetings in a year. A board member may be removed for other reasons by a three-fourths vote of the remaining directors.

Section 10-Special meetings: Special meetings of the board shall be called upon the request of the chair, or one-third of the board. Notices of special meetings shall be sent out by the secretary to each board member at least two weeks in advance.

Section 11-Standard of Conduct: An officer shall discharge the duties of an office in good faith; in a manner the officer reasonably believes to be in the best interests of Revive Recovery and with the care an ordinarily prudent person in a like position would exercise under similar circumstances. A person exercising the principal functions of an office or to whom some or all of the duties or powers of an office are delegated, must adhere to the standard of conduct required of an officer.

ARTICLE IV-COMMITTEES

Section 1-Committeeformation: The board may create committees as needed, such as fundraising, housing, public relations, data collection, etc. The board Chair appoints all committee chairs.

Section 2-Executive Committee: The four officers serve as the members of the Executive Committee. Except for the power to amend the articles of incorporation and bylaws, the Executive Committee

shall have all the powers and authority of the board of directors in the intervals between meetings of the board of directors, and is subject to the direction and control of the full board.

Section 3-Finance Committee: The treasurer is the chair of the Finance Committee, which includes up to three other board members. The Finance Committee is responsible for developing and reviewing fiscal procedures, fundraising plans and annual budget with staff and other board members. The board must approve the budget and all expenditures must be within budget. Any major change in the budget must be approved by the board or the Executive Committee. The fiscal year shall be the calendar year. Annual reports are required to be submitted to the board showing income, expenditures, and pending income. The financial records of the organization are public information and shall be made available to board members and the public.

ARTICLE V-DIRECTOR AND STAFF

Section 1-Executive Director: The board may hire an executive director is hired by the board. The executive director has day-to-day responsibilities for the organization, including carrying out the organization's goals and policies. The executive director will attend all board meetings, report on the progress of the organization, answer questions of the board members and carry out the duties described in the job description. The board can designate other duties as necessary.

ARTICLE VI-AMENDMENTS

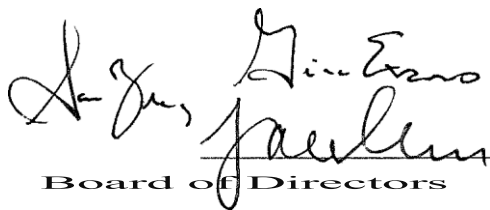
Section 1-Amendments: These bylaws may be amended, when necessary, by two-third majority of the board of directors. Proposed amendments must be submitted to the secretary to be sent out with regular board announcements.

ARTICLE VII-DISSOLUTION

Section 1-Dissolution: The board shall adopt a resolution, subject to the Articles of Incorporation of Revive Recovery, proposing dissolution of Revive Recovery by the affirmative vote of a majority of all directors. The resolution must include a plan of dissolution that states to whom the assets owned or held by Revive Recovery will be distributed after creditors are paid.

CERTIFICATION

These bylaws were approved at a meeting of the board of directors by a two-thirds majority vote on the 23rd day of September, 2023.


Board of Directors

9-23-2023
Date